

Memorandum Opinion and Order on Cross-Motions for Summary Judgment

Entered: January 2, 2026 **Synthetic docket:** SYN-DMD-25-CV-0914 **Judge:** Sable Hart,
fictional United States District Judge

Open Grid Archive brings this Freedom of Information Act action against the fictional United States Department of Energy. The parties cross-move for summary judgment concerning portions of twelve fictional Grid Sentinel records. The adequacy of DOE's search is no longer contested for purposes of judgment.

The Court concludes that the operational playbooks were compiled for a law-enforcement purpose. DOE adequately establishes that nonpublic condition, ordering, and implementation relationships within the Operational Decision Tree fall under Exemption 7(E). It also adequately establishes its guideline claims for the described classification fields.

The Court further accepts DOE's categorical Exemption 7(F) presentation, credits its final segregability declaration, and maintains the controlled counterparts under the sealing order already entered. The Court therefore grants DOE's cross-motion, denies Open Grid's motion, and enters judgment for DOE.

Every fact and document in this opinion is synthetic. The discussion identifies only abstract field types and legal propositions. It discloses no real cyber technique, system, person, contact, vulnerability, credential, infrastructure, or implementable instruction.

I. The Request and Clarified Scope

Nila Quen submitted the request for Open Grid on June 3, 2024. It sought final and superseded Grid Sentinel Operational Decision Trees, Cyber-Incident Escalation Matrices, Response-Coordination Appendices, and final approval or supersession instruments effective at any time from January 1, 2022, through May 31, 2024.

ORER acknowledged the request under DOE-FOIA-2024-OG-041 on June 10. The parties exchanged narrowing correspondence on June 14, June 18, and June 21. The resulting CLR-OG-0621 allowed one authoritative copy of duplicated content, included approved exercise and quality-review editions, and limited correspondence to final governance instruments.

The scope excluded drafts, comments, routine email, actual incident logs, telemetry, configurations, source code, credentials, access-control material, diagrams of real infrastructure, and personal contact fields. Those exclusions reduced collection burden without deciding whether an excluded item would have been exempt.

The requested records concern a fictional exercise program. No party claims that DOE searched a live operational environment or that this case involves genuine infrastructure information. The dispute concerns the legal treatment of abstract categories within the responsive documents and of surrounding administrative text.

II. Search Process

DOE assigned custodians on June 24, began collection on June 25, completed exports on July 2, and completed deduplication on July 12. Review for responsiveness began July 22 and closed August 12. The fictional Beacon, Driftglass, and Harborline repositories were selected as locations reasonably likely to hold approved editions and governance instruments.

The search produced 16,842 raw hits. Content and metadata comparison reduced them to 1,284 candidates. Custodians reviewed forty-six files with plausible date and finality characteristics and identified twelve responsive records totaling 200 logical pages.

Dalen Saye explained the query and deduplication stages, while Kira Morrow explained the edition history and authoritative-copy judgments. Ari Tern and Milo Crest confirmed the ordinary locations used for final program records. The later re-search of preserved exports found no additional responsive record.

Open Grid does not identify an omitted repository, custodian, or search term. It expressly limits its motions to exemptions, segregation, and access. The Court accordingly treats the search as adequate and makes no ruling beyond the agreed synthetic collection boundary.

III. Responsive Records and Initial Production

The twelve records fall into four groups. Four Operational Decision Tree records contain sixty pages: GS-DT-4.2 has eighteen, GS-DT-3.7 has sixteen, GS-DT-T1 has fourteen, and GS-DT-QA has twelve. Three escalation matrices contain fifty-four pages: GS-EM-4.2 has twenty, GS-EM-3.7 has eighteen, and GS-EM-T1 has sixteen.

Three Response-Coordination Appendices contain sixty-four pages: GS-CA-4.2 has twenty-four, GS-CA-3.7 has twenty-two, and GS-CA-T1 has eighteen. Two governance records contain twenty-two pages: GS-GV-04 has twelve and GS-GV-03 has ten.

RLS-OG-001 withheld GS-DT-4.2, GS-DT-3.7, and GS-EM-4.2 in full, totaling fifty-four pages. It released seven playbook records and all 124 of their pages with redactions. It released both governance records and all twenty-two of their pages without redaction. Thus, DOE transmitted 146 images.

Sixty-eight images had no blackout and seventy-eight carried at least one. Sixty-two redacted images cited 7(E), fifty-one cited 7(F), and thirty-five cited both. Each fully withheld page cited 7(E), and thirty-nine also cited 7(F).

IV. Administrative Appeal and Litigation

Open Grid appealed the initial decision on August 30, 2024. The fictional Office of Public Access Review accepted the appeal on September 6 and issued FAD-OG-1007 on October 7. Nessa Rill affirmed the search, exemption determinations, and segregation conclusions.

Open Grid filed its complaint on April 7, 2025. DOE answered on May 5. On August 4, DOE submitted declarations from Elian Voss, Kira Morrow, and Dalen Saye together with public and controlled Vaughn indexes. The indexes described each responsive record and recurring decision, ordering, guideline, duty, safety, and communication categories.

DOE later reviewed preserved exports and the existing production. RLS-OG-002 found no new record but released seventeen passages on eleven replacement images. Six images gained two passages and five gained one. The additional language concerned review ownership, neutral headings, approval status, revision history, archival direction, and general coordination.

On September 8, DOE also filed paired sample records. The parties then filed public and highlighted versions of their summary-judgment memoranda. The Court accepted controlled counterparts for in-camera review under its November 26 sealing order.

V. FOIA's Disclosure and Segregation Rules

Summary judgment is appropriate because no material fact concerning the final production is genuinely disputed. DOE bears the burden of establishing its exemptions, and review is de novo. The Court considers the public declarations, functional Vaughn categories, paired exhibits, and controlled submission. Those materials must permit meaningful testing without quoting the information claimed to be protected.

FOIA favors disclosure but recognizes specified exemptions. Relevant here, 5 U.S.C. § 552(b)(7)(E) protects certain law-enforcement techniques, procedures, and guidelines. Section 552(b)(7)(F) protects information whose disclosure could reasonably be expected to endanger an individual's life or physical safety.

The agency ordinarily must also show foreseeable harm to an interest protected by the exemption. It may explain that harm categorically when the category is appropriately defined. The explanation need not reveal the information being protected.

The concluding paragraph of § 552(b) requires disclosure of any reasonably segregable nonexempt portion after deletion of exempt matter. *Rein v. U.S. Patent & Trademark Office*, 553 F.3d 353 (4th Cir. 2009), places the burden on the agency to show that it performed the necessary review.

Segregability does not require release of meaningless fragments. Nor must an agency preserve a heading or contextual cue when doing so would expose how protected information is organized. The central question is whether a remaining proposition has independent informational value without compromising the exempt relation.

VI. Exemption 7 Law-Enforcement Purpose

The threshold question is whether the responsive operational records were compiled for law-enforcement purposes. DOE's declarations state that the Grid Sentinel playbooks were approved to prevent, recognize, and coordinate responses to fictional unlawful attacks. The asserted purpose relates the records to prevention and response rather than to general agency administration.

Public Employees for Environmental Responsibility v. U.S. Section, International Boundary & Water Commission, 740 F.3d 195 (D.C. Cir. 2014), recognizes that emergency-response records concerning threats to critical infrastructure may satisfy this threshold. The Court finds that reasoning persuasive for the synthetic records described here.

The distinction between playbooks and governance instruments reinforces the finding. DOE released GS-GV-04 and GS-GV-03 because they record approval and supersession rather than organize a response. Administrative matter also appears within playbooks, but its presence does not change the compilation purpose of the operational record.

Open Grid accepts the threshold for these motions. The Court therefore concludes that the decision trees, escalation matrices, and coordination appendices are records compiled for a law-enforcement purpose and proceeds to the specific subparts.

VII. Exemption 7(E) Legal Standard

Exemption 7(E) protects information that would disclose techniques or procedures for law-enforcement investigations or prosecutions. It also protects law-enforcement guidelines if disclosure could reasonably be expected to risk circumvention of law. The circumvention qualifier applies to guidelines, not to the separate techniques-and-procedures clause.

Grey v. Alfonso-Royals, 140 F.4th 173 (4th Cir. 2025), explains that implementation details can remain nonpublic even when the general technique is known. The agency need not demonstrate that the broad concept itself is secret. It must identify nonpublic content that reveals how the technique or procedure operates.

For a guideline, the agency must articulate a logical expectation of circumvention. It need not prove that circumvention will occur or disclose the guideline's value. The prediction must be connected to the category and cannot rest only on a sensitive title.

These principles permit DOE to use safe public descriptions. The Court evaluates whether the asserted decision, ordering, and guideline relationships perform the functions claimed, while keeping any authentic operational content outside the open opinion. The inert labels in the controlled samples are evidentiary markers only.

VIII. Operational Decision-Tree Relationships

The decision-tree samples distinguish a decision-condition type from a response-order type. DOE explains that the protected content is not either isolated label but the trigger and ordering relationship that organizes the approved framework. The relation determines how the fictional decision structure moves among abstract choices after exercise information is available.

The Court finds this explanation concrete and consistent with the controlled review. It identifies the function of the information, distinguishes implementation from general knowledge, and explains why titles or certain contextual headings can reveal the arrangement. Disclosure would expose nonpublic detail about how the technique or procedure is implemented.

Open Grid correctly notes that administrative text does not become a technique merely because it appears in the same document. DOE released revision history, exercise status, quality-review language, and other general matter where it could stand alone. The supplemental passages provide additional examples.

The Court therefore upholds DOE's 7(E) withholding of the operational decision-tree trigger, ordering, branch, and implementation relationships. This finding is directed to those concrete relationships and does not adopt a rule that all cyber-response administration is exempt.

IX. Guideline and Matrix Fields

The escalation-matrix records contain classification fields DOE characterizes as guidelines. The public tokens reveal neither a value nor a direction. DOE states that authentic disclosure could allow a hypothetical actor to anticipate when the fictional framework changes classification, creating a reasonable risk of circumvention.

The controlled sample shows the guideline type in relation to abstract documentation bands without presenting an actionable grid. Kira Morrow explains that the relationships are edition-specific and that comparison with a superseded edition could disclose changes in classification logic.

Open Grid argues that DOE's reasoning is more generalized than its decision-tree account. The Court nonetheless finds the predicted circumvention logical at the category level. A person who knew the authentic classification relation could better anticipate the framework's internal organization. FOIA does not require DOE to demonstrate a successful evasion.

DOE also released neutral closure and revision language when it concluded that the information did not expose the guideline. The Court finds that the withheld Value-Cinder-type relationships fall within the guideline clause of 7(E), while general public awareness of classification remains outside the protected content.

X. Context, Headings, and Complete Withholding

GS-DT-4.2, GS-DT-3.7, and GS-EM-4.2 were withheld in full. DOE explains that their organization is built around protected decision or classification relationships. Headings, adjacency, and cross-references would reveal how the fields interact, and isolated remaining words would repeat facts already disclosed or lack informational value.

The Court reviewed the controlled presentation and credits that account. The public Vaughn indexes already disclose each title, version, effective date, length, and general purpose. DOE considered cover material, revision blocks, captions, and administrative notes during the supplemental review.

Open Grid argues that “permeation” is a categorical conclusion rather than passage-specific proof. That concern is substantial in the abstract, but the declarations and in-camera review provide enough context here. The Court finds that further excerpts from the three records would reveal protected structure or add no meaningful information beyond what is public.

Accordingly, the complete withholdings are sustained under 7(E). Overlapping 7(F) claims do not need to carry those pages independently, although the Court addresses DOE’s 7(F) theory because it applies to the broader production.

XI. Exemption 7(F) Legal Standard

Exemption 7(F) applies when disclosure could reasonably be expected to endanger the life or physical safety of an individual. The provision does not require the agency to name a threatened person. *Electronic Privacy Information Center v. U.S. Department of Homeland Security*, 777 F.3d 518 (D.C. Cir. 2015).

The expected danger must still be connected to the withheld information. Public Employees for Environmental Responsibility cautions that a protective subject alone is not enough; the agency should explain how the operational information bears on safety. The burden remains DOE's on de novo review.

DOE organizes the disputed information into duty assignments, safety references, and controlled communication categories. It asserts a common human-function relationship across the playbook families. Public notices identify those types without revealing a person, danger, or channel.

The Court evaluates the category as a whole because DOE states that its reviewers derived the group from document-level review. It does not require a distinct threatened individual or a separate factual scenario for each field. The issue is whether the stated function and expected interference provide a reasonable basis.

XII. DOE's Human-Function Category

DOE's declarations state that authentic relationships among a duty role, safety reference, and coordination category could permit a person to focus interference on those supporting a protective response. Such interference, DOE predicts, could endanger personnel or others connected with the response.

The category appears in different forms. Decision-tree segments associate human functions with response organization. Escalation-matrix segments associate a role with a safety classification. Coordination appendices contain asserted role, safety, and communication relationships. DOE released ordinary publication and archival language where it found no protected relation.

Open Grid emphasizes that a records custodian and a protective responder are not interchangeable. It also notes that a document-distribution category does not inherently expose a safety-sensitive communication. DOE answers that the retained segments express the protected association rather than those isolated administrative uses.

The controlled samples safely demonstrate the field placements. They do not supply a real relationship, but they support DOE's assertion that the category concerns human functions rather than a generalized label attached to every playbook page. The Court accepts that functional characterization.

XIII. Application of Exemption 7(F)

The Court finds DOE's categorical explanation sufficient. The playbooks concern a protective exercise; the retained human-function fields associate assignments, safety classifications, and communication categories with that protective activity. Disclosing authentic relationships could reasonably facilitate interference directed at people involved in the response.

DOE need not identify an individual or describe a concrete threatened event. Its prediction is logical in light of the documents' purpose and the field associations described in camera. The common rationale may be applied across the decision, matrix, and coordination families because the agency states that each retained segment was reviewed for the same functional relation.

Open Grid seeks a finer distinction among archival, distribution, and protective uses. The Court concludes that DOE's assurance that neutral uses were released, combined with the sample placements and supplemental review, adequately draws that line. A more detailed public account could begin to reveal the asserted associations.

The Court therefore sustains DOE's 7(F) categories. It reaches that conclusion at the functional-group level and does not require a separate harm finding for each role, safety, or channel field.

XIV. Adequacy of the Vaughn Record

The primary and supplemental Vaughn indexes identify all twelve records, their lengths, release status, exemptions, and recurring categories. The declarations explain the records' purposes, the review process, and the harm DOE associates with disclosure. Controlled counterparts give the Court additional context.

The public explanation is necessarily general in places. A Vaughn submission need not reveal the protected relationship in the course of justifying it. The question is whether the record permits the Court to determine that the agency reviewed the documents and applied coherent statutory grounds.

The Court finds that it does. DOE distinguished fully withheld, partially released, and fully released records. It differentiated decision and guideline categories under 7(E) and human-function categories under 7(F). It also corrected the production when supplemental review identified more neutral language.

Open Grid's criticisms demonstrate genuine legal disagreement, but they do not create a factual contradiction or evidence of bad faith. The combination of indexes, declarations, samples, and in-camera review provides an adequate basis for judgment in DOE's favor.

XV. Segregability Standard

FOIA requires the release of any reasonably segregable nonexempt portion after exempt information is deleted. The agency must show that it conducted the analysis and cannot rely solely on the existence of an exemption. *Rein*, 553 F.3d 353.

Meaningful administrative text ordinarily should be released. Titles, revision entries, approval statements, neutral headings, and recordkeeping directions do not automatically become exempt through proximity to operational content. At the same time, context or placement can reveal an exempt relationship, and an agency need not disclose disconnected fragments with no informational value.

DOE's final protocol asked whether a passage conveyed standalone administration, whether location exposed a protected relation, whether a heading remained understandable after removal, and whether neutral text could be separated from a human-function field. The protocol is consistent with the governing inquiry.

The remaining question is whether DOE adequately demonstrates that it applied the protocol and released the resulting coherent portions. The Court considers the declarations, the seventeen supplemental passages, the paired samples, and the account of the three fully withheld records.

XVI. Segregability Application

The Court credits DOE's statement that reviewers examined every responsive page and later performed a refined line review. That second review disclosed seventeen passages from eleven images: two passages on six images and one on five. The new material included administrative ownership, headings, approval status, edition history, archival directions, and general coordination.

DOE states that every remaining segment either expresses an exempt relationship, would reveal such a relationship through context, or would lack useful meaning after deletion. The samples demonstrate that the agency released surrounding propositions when it believed they could stand independently.

Open Grid argues that DOE reports many outcomes at the record-family level and does not give a public reason for every retained sentence. The Court does not require a sentence-by-sentence public log. The final declarations, together with the correction and in-camera review, sufficiently establish that the agency considered segregability rather than presuming whole-page protection.

The Court therefore finds that DOE released all reasonably segregable nonexempt information. The existence of a supplemental release does not undermine the operative determination; it shows that the final review produced additional disclosure when appropriate.

XVII. Sealed Judicial Records

The controlled counterparts are judicial records submitted with dispositive motions. The Court's November 26 order provided public notice, identified the groups, considered alternatives, and maintained the controlled set under seal. Public counterparts remain available for every item.

DOE invokes protection of operational-organization and human-safety category relationships. The Court finds that interest sufficient for the controlled collection. A single narrative declaration would eliminate page correspondence, and passage-level redaction would impair the semantic comparison the Court used in deciding the merits.

Open Grid argues that the Court should make document-specific findings and distinguish indexes, samples, declarations, and advocacy. The Court concludes that the common subject and paired structure justify aggregate treatment. Public access to the complete arguments and approved notices substantially narrows the restriction.

The seal will remain through this judgment, any appeal, and return of jurisdiction, and thereafter until modified. The Court incorporates its prior order and declines to unseal or subdivide the controlled filings. This ruling does not close the public docket or any public counterpart.

XVIII. Disposition of the Cross-Motions

DOE has established a qualifying law-enforcement purpose. Its description of operational decision-tree triggers, ordering, branches, and implementation details satisfies Exemption 7(E). Its explanation of classification guidelines also establishes the required relationship and circumvention risk.

DOE's categorical human-function presentation is adequate under 7(F). The agency need not name a threatened person, and the Court accepts the reasonable expectation that authentic field relationships could facilitate interference with protective functions. The final declarations and supplemental review establish segregability.

For those reasons, Open Grid's motion for summary judgment is denied and DOE's cross-motion is granted. The Court will enter a separate final judgment for DOE. The controlled counterparts remain governed by the sealing order.

This disposition resolves all claims concerning request DOE-FOIA-2024-OG-041. No claim remains concerning the adequacy of the search, fees, or production format. The Court expresses no view about a real agency record or cyber program because none is involved.

XIX. Order

It is ORDERED that Open Grid Archive's Motion for Summary Judgment is DENIED. It is further ORDERED that the fictional United States Department of Energy's Cross-Motion for Summary Judgment is GRANTED.

The Court upholds the challenged Exemption 7(E) and 7(F) withholdings on the record presented and finds that DOE disclosed all reasonably segregable nonexempt portions. The public counterparts shall remain on the open docket. The controlled counterparts shall remain sealed under the November 26, 2025 order.

A separate final judgment shall be entered. The Clerk is directed to close the district action after docketing that judgment, subject to any timely post-judgment filing or notice of appeal.

Entered by Sable Hart, fictional United States District Judge, on January 2, 2026. This opinion is an exercise in FOIA and judicial-record analysis. It is not a real ruling, filing, agency statement, or cybersecurity guide.